

MASTER SERVICES AGREEMENT

Nexus Sentinel - Institutional Deployment

This Master Services Agreement (the "Agreement") is made and entered into on [Insert Date], by and between:

NEXUS, a cybersecurity and infrastructure technology entity having its principal place of business at [Insert Address], Katihar, Bihar, India ("Provider"); and

[INSERT INSTITUTION NAME], an educational institution or administration having its principal operations at [Insert Address] ("Subscriber").

The Provider has developed and maintains proprietary software for institutional cybersecurity, policy enforcement, endpoint protection, and academic infrastructure integrity. The Subscriber wishes to deploy the software across school-owned hardware under a privacy-aware and policy-driven framework. The Parties therefore agree as follows.

1. Definitions & Interpretation

1.1 Provider means NEXUS, the developer and licensor of the Licensed Software.

1.2 Subscriber means the educational institution executing this Agreement, together with its authorized administrators.

1.3 Licensed Software means "Nexus Sentinel," a Win32-native institutional security and compliance utility intended solely for cybersecurity, policy enforcement, endpoint protection, and academic infrastructure integrity. The Licensed Software is not intended to function as general consumer surveillance software.

1.4 Endpoint means any physical school-owned hardware device on which the Licensed Software is installed and activated.

1.5 Data Fiduciary has the meaning assigned under the Digital Personal Data Protection Act, 2023, and refers here to the Subscriber in respect of student and staff personal data processed under this Agreement.

1.6 Data Processor has the meaning assigned under the Digital Personal Data Protection Act, 2023, and refers here to the Provider when processing data strictly on the Subscriber's documented instructions.

1.7 Local Processing means processing performed primarily on the Endpoint or within the Subscriber's controlled environment, with only the minimum necessary data transmitted outward when an escalation condition is met.

1.8 Category A Infraction means a high-severity event listed in Appendix A, including malware execution, unauthorized privilege escalation, RAT installation attempts, credential theft attempts, exam cheating tools, and network bypass tools.

1.9 Category B Alert means a lower-severity policy or integrity event that is logged locally and does not trigger external escalation.

1.10 Event Escalation means the transmission of a narrowly scoped, encrypted event record to the Provider or Subscriber administrator following a Category A Infraction.

1.11 Human Review means review by a designated school administrator or other authorized human decision-maker before disciplinary enforcement or irreversible action.

2. Scope of Service & Commercial Terms

2.1 Deployment Architecture. The Provider grants the Subscriber a non-exclusive, non-transferable, revocable license to deploy the Licensed Software on authorized Endpoints. The software may run as a background native service on Subscriber-owned hardware for the limited purpose of policy compliance and endpoint integrity.

2.2 Commercial Structure. The fee structure shall be set out in the applicable order form or pricing schedule. Unless otherwise stated there, the current reference rate is ₹80.00 (Rupees Eighty) per Endpoint per month, billed annually in advance.

2.3 Pass-Through Charges. The Subscriber may, subject to applicable law and its own internal policy decisions, allocate part or all of the commercial cost to students or guardians as a disclosed institutional fee. The Provider does not mandate any such pass-through and bears no responsibility for the Subscriber's fee collection choices.

2.4 Ethics and Purpose. The Parties acknowledge that the Licensed Software is designed to support institutional cybersecurity while applying data minimization, proportionality, and student privacy safeguards.

3. Privacy & Student Protection Commitments

3.1 No Continuous Live Monitoring. The Licensed Software shall not provide continuous live monitoring to administrators as a general operating mode. Any viewable output shall be limited to defined policy events and administrative review workflows.

3.2 No Persistent Keystroke Retention. The system shall not persistently store keystrokes absent a defined trigger event. Routine typing activity, where processed at all, shall remain transient and local-first.

3.3 No Remote-View Backdoor. The Licensed Software shall not include hidden or general-purpose administrator remote-view functionality. Any display or snapshot delivery must be explicitly tied to a documented escalation event.

3.4 Webcam Use. Webcam activation, if enabled at all, shall occur only for defined critical infractions and only after policy configuration by the Subscriber. The software shall not activate the camera for ordinary monitoring.

3.5 Data Minimization. The Provider shall design the system to collect and transmit only the minimum data reasonably required for the escalated event or administrative review.

3.6 Encryption. Any event data transmitted outside the local device shall be encrypted in transit and shall be limited to escalation-related payloads.

4. Data Handling, Auditability & Transparency

4.1 Volatile Local Buffer. Any transient processing buffer shall be local, ephemeral, and automatically overwritten according to system design.

4.2 Audit Logging. The system shall log escalations, access events, policy changes, and administrative actions attributable to a specific user or administrator account where technically feasible.

4.3 Event History. The Subscriber shall have access to relevant event history and administrative logs for review, investigation, and compliance oversight.

4.4 No Hidden Access. The Provider shall not intentionally include undisclosed remote-access capability, covert persistence mechanisms, or undocumented data exfiltration channels.

4.5 Reviewability. Upon reasonable request and subject to NDA where appropriate, the Subscriber may conduct a technical review of the architecture, controls, and security posture of the Licensed Software.

5. Category A Infractions and Review Procedure

5.1 Defined Events. Category A Infractions are limited to the events listed in Appendix A. Any detection criteria not listed in Appendix A shall be treated as a Category B Alert unless the Parties later amend the schedule in writing.

5.2 Human Review Required. Telemetry and escalated events are advisory indicators only. They require Human Review before any disciplinary enforcement, exclusion, suspension, or other irreversible institutional action.

5.3 False Positives. The Parties acknowledge that false positives can occur. The Subscriber shall retain discretion to investigate context, apply procedural fairness, and override automated recommendations where appropriate.

5.4 Educational Exceptions. Reasonable cybersecurity research, approved classroom tools, and legitimate academic content are excluded from Category A treatment unless expressly prohibited by the Subscriber's documented policy and confirmed by Human Review.

6. Liability, Indemnity & Risk Allocation

6.1 Subscriber Responsibilities. The Subscriber is responsible for parent or guardian notices where required, consent management where required, institutional policy choices, deployment configuration, and any disciplinary decisions made on the basis of the software's outputs.

6.2 Provider Responsibilities. The Provider is responsible for the security of its software build, transmission integrity for data it processes, and the functionality it expressly documents in writing.

6.3 Mutual Indemnity. Each Party shall indemnify the other to the extent a claim arises from its own breach of this Agreement, gross negligence, willful misconduct, or violation of applicable law.

6.4 Limitation of Liability. Except for fraud, willful misconduct, confidentiality breaches, data misuse, or unpaid fees, each Party's aggregate liability under this Agreement shall be capped at the fees paid in the twelve (12) months preceding the event giving rise to the claim.

7. Service Levels & Support Boundaries

7.1 Support Scope. The Provider's support obligations are limited to backend software maintenance, release updates, and documented telemetry infrastructure maintenance.

7.2 Subscriber IT Scope. Local hardware maintenance, OS-level troubleshooting, routing, printer setup, and physical device anti-tamper controls remain the responsibility of the Subscriber's own IT staff or appointed contractors.

7.3 Reasonable Assistance. The Provider may, at its discretion, provide reasonable remote guidance for deployment, troubleshooting, and configuration, but is not obligated to manage the Subscriber's local network or devices directly.

8. Term, Termination & Renewal

8.1 Pilot Term. The initial term shall be six (6) months from the Effective Date, unless otherwise specified in the order form.

8.2 Renewal. After the Pilot Term, the Agreement may renew on an annual basis unless either Party provides written notice of non-renewal at least sixty (60) days before the end of the then-current term.

8.3 Early Termination. Either Party may terminate for uncured material breach after written notice and a reasonable opportunity to cure. Upon termination, the Subscriber shall pay only for services properly rendered through the effective termination date, subject to any non-refundable charges expressly stated in the order form.

9. Governing Law & Dispute Resolution

9.1 This Agreement shall be governed by and construed in accordance with the laws of the Republic of India.

9.2 Subject to applicable law, the courts competent at Katihar, Bihar, India shall have jurisdiction over disputes arising out of or relating to this Agreement.

10. Miscellaneous

10.1 Entire Agreement. This Agreement, together with its appendices and order form, constitutes the entire agreement between the Parties on its subject matter.

10.2 Amendments. Any amendment must be in writing and signed by both Parties.

10.3 Severability. If any provision is held unenforceable, the remaining provisions shall continue in effect to the fullest extent permitted by law.

10.4 Counterparts. This Agreement may be executed in counterparts and by electronic signature, each of which shall be deemed an original.

Appendix A - Category A Infractions

For purposes of this Agreement, Category A Infractions are limited to the following high-severity events:

- A. Malware execution or installation attempts.
- B. Unauthorized privilege escalation or root/admin persistence attempts.
- C. RAT installation attempts or command-and-control tools.
- D. Credential theft, exfiltration, or phishing-tool usage.
- E. Exam cheating tools or bypass tools used to defeat institutional integrity controls.
- F. Network bypass tools, proxy evasion utilities, or unauthorized tunneling mechanisms.
- G. Explicit adult-content access where expressly prohibited by the Subscriber's written policy and confirmed through Human Review.

The following are excluded unless separately and expressly classified by written policy and Human Review: approved classroom software, legitimate academic content, ordinary research activity, and ordinary cybersecurity training or lab work.

IN WITNESS WHEREOF, the Parties have executed this Master Services Agreement as of the date first written above.

FOR THE PROVIDER (NEXUS):

Signature: _____

Name: _____

Title: _____

Date: _____

FOR THE SUBSCRIBER:

Signature: _____

Name: _____

Title: _____

Date: _____